

The Claremont City Council held a meeting on Wednesday, December 14, 2022, in the Council Chambers of City Hall.

The meeting was called to order by Mayor Girard at 6:30 p.m.

Members of the Council present:

Ward I Councilor Andrew O’Hearne
Ward II Councilor James Contois
Ward III Councilor Jonathan Stone
Assistant Mayor Debora Matteau
At-Large Councilor Nicholas Koloski
At-Large Councilor William Limoges – absent
At-Large Councilor Spencer Batchelder
At-Large Councilor Matthew Mooshian
Mayor Dale Girard

Also present:

Yoshi Manale, City Manager

AGENDA CHANGES

REPORT OF THE SECRETARY

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to accept the minutes of the November 9th, 2022, City Council meeting.

Voice vote:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

MAYOR’S NOTES

Mayor Girard stated the Governor made an announcement for the L-CHIP grants. Thirty-four grants were given across the state. Claremont is receiving \$130,000.00 to support the repair, preservation, and restoration of historic windows in the Claremont City Hall Opera House Complex.

The CDA is holding a celebration next door at 56 and 58 Opera House Sq. There will be a presentation tomorrow afternoon around 3:30 p.m.

Tomorrow and Friday evening there is a recreation economy for rural communities, this will take place at the Claremont Savings Bank Community Center.

Mayor Girard reminded all that there is only one meeting this month, and the next Council meeting is January 11th.

CITY MANAGER'S REPORT

City Manager Manale, welcomed new employees Mike Murphy, Firefighter and Thomas Grantham, Treasurer.

\$24,000.00 has been transferred from general services to consulting services to cover the cost of Merchant McIntyre Associates Consulting Services, this will be for a three month trial period.

City Manager Manale read a statement to clarify concerns relative to Arrowhead.

Councilor Contois thanked the Police Department for the ACERT coordinator update in their monthly report.

APPOINTMENT TO BOARDS AND COMMITTEES

A motion was made by Councilor O'Hearne and seconded by Councilor Stone to for CDA and Claremont Police commission appointments to be moved to the January 11th Council meeting.

Voice vote:

O'Hearne - yes

Batchelder - yes

Stone - yes

Matteau - no

Koloski - no

Contois - yes

Mooshian - yes

Girard - yes
Motion carried 6-2

Fiske Free Library Board of Trustees

A motion was made by Councilor Batchelder and seconded by Councilor O’Hearne to re-appoint Annalisa Summea to Seat A-1 of the Fiske Free Library Board of Trustees.

Voice vote:
O’Hearne - yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 8-0

CITIZEN’S FORUM

Mayor Girard reminded all that the citizens forum is for non-agenda items, and each speaker has five minutes.

Mike Tetu, Ward 1, read a statement relative to Arrowhead that he had given to the Council and Council Clerk.

Chuck Allen, Ward 3, Gave a few updates on Arrowhead. Mr. Allen noted they have started making snow Tuesday at 4am. Mr. Allen addressed leasing concerns and stated it was mostly lack of communication. Mr. Allen stated the Lodge was built in 62’, and it is a beloved destination for all, and encourages everyone to take a tour.

Michael Hughes, Ward 2, speaking on behalf of an opportunity to be on the Board of Police Commissioners. Mr. Hughes stated he is asking for three years. Accomplishments and solutions were the words asked the Council to consider. Mr. Hughes has 6 years of college education, and law enforcement. Mr. Hughes stated seven years ago he started working in the court system, working in four different courts. Mr. Huges wants to examine new programs, and why the department is down several officers. Mr. Hughes Thanked all applicants.

Walt Stapleton, Sullivan County District 6, Ward 3, Thanked Claremont and Croydon citizens who voted for his third term. Mr. Stapelton noted he represents all citizens of Croydon, and

Claremont regardless of partisan representation. Mr. Stapleton also commented Arrowhead is a community asset and should pursue all possible avenues to generate revenue.

Norm Blouin, Ward 3, shared concern for the Community Center, Management, and Maintenance.

Hope Damon, District 8 for Croydon and Claremont, wants to thank everyone who voted. Ms. Damon gave contact information: Email - Hoperdnh@gmail.com Cell Phone - 603 848-8427. Ms. Damon is interested in working on education funding, and affordable housing and is looking forward to working with City Council and Citizens.

Jim Dube, Ward 3, stated he spent twenty-four years in law enforcement and retired in 1999. Mr. Dube stated he wants to be involved in the City in which he lives, and being from Claremont PD he feels he could be a good asset for the Police Commission.

Robert Walker, Ward 1, stated he is looking forward to presenting the future of Arrowhead. Mr. Walker noted he will honor the past, but not in the way of the future. The vision being brought to the table is a collaborative effort.

Zack Wallace, Ward 2, expressed he is 100% in favor of expanding Arrowhead. Mr. Wallace mentioned as a freelance photographer he saw people from all over including Canada riding their bikes at Arrowhead. He noted the income from biking is substantial, and it saddens him that so many are people are fighting this when it could benefit the City in so many ways.

OLD BUSINESS

Ordinance 600 Accessory Dwelling Units - Second Reading- Public Hearing

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY TWO

ORDINANCE #600

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Duplex, multi-family, and accessory dwelling unit regulations and approvals.

Revise and renumber portions of Chapter 22, Zoning Ordinance, to require approval for duplexes, multi-family conversions and accessory dwelling units (ADUs) by conditional use permit rather than by special exception, to clarify that manufactured housing may not be used as a duplex, to permit ADUs by conditional use permit in all residential districts, to allow detached ADUs under certain conditions, and to establish and amend owner residency requirements and other conditions for ADUs, as follows:

Sec. 22-1. Definitions.

Accessory dwelling unit (ADU) shall mean a residential living unit that is within or attached to an owner-occupied single-family dwelling unit, or that is in a detached building or structure on the same lot, that is not "manufactured housing" as defined by RSA 205-A or a mobile home, and that provides independent living facilities for one (1) or more persons, including provisions for sleeping, eating, cooking, and sanitation on the same parcel of land as the principal dwelling unit it accompanies.

Duplex shall mean a single residential structure containing two (2) dwelling units or two (2) dwelling units which are separated by a common wall, no part of which consists of manufactured housing as defined herein, neither of which dwelling unit is accessory, incidental, or subordinate to the other, and which dwelling units may be separately owned. A duplex by definition is not an accessory dwelling unit.

Insert new Section after Sec 22-146:

Sec. 22-147. Conditional use permits.

The following uses may be permitted in the agricultural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

- (1) Duplexes.
- (2) ADUs, subject to the regulations contained in section 22-513.

Sec. 22-148. Special exceptions.

The following uses may be permitted in the agricultural residential district by the zoning board of adjustment subject to the regulations contained in section 22-56 et seq., as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions or safeguards.

- (1) Overnight camping areas, provided they are in conformance with all local and state regulations.
- (2) Sawmills, provided that they are located at least one thousand (1,000) feet from any existing dwelling.

- (3) Gravel processing plants not including rock crushing operations, provided that the processing plants are located at least three hundred (300) feet from any existing residence and two hundred (200) feet from any highway; rock drilling for industrial purposes provided that the drilling operations are located at least seven hundred (700) feet from any existing residence and highway; and rock crushing operations provided that the operations are located at least one thousand five hundred (1,500) feet from any existing residence and highway and further provided:
 - a. That any gravel processing operation or rock crushing operation conform to the provisions contained in section 22-507; and
 - b. That any of the above uses must be located on lots of at least ten (10) acres and such uses shall be subject to such other conditions as the zoning board of adjustment may determine to be essential to provide screening from abutting properties or to prevent excessive noise, dust, vibration or traffic congestion.
- (4) Outdoor recreation such as ski areas, golf courses, riding stables, snowmobiling or similar activities which:
 - a. Are not conducted primarily for spectator sports; and
 - b. Do not provide overnight accommodations.
- (5) Kennels for keeping of four (4) or more dogs, provided that the dogs are kept at least three hundred (300) feet from existing dwellings.
- (6) Home occupations.
- (7) Sale of camping equipment and supplies on the grounds of a campground.
- (8) Planned residential development in accordance with the provisions contained in section 22-571 et seq.
- (9) Accessory uses and buildings.
- (10) Extraction of sand and gravel.
- (11) Where the boundary line of a zoning district divides a lot in single or joint ownership the regulations for either district may extend to the entire lot, but in no case shall any permitted use be extended more than seventy-five (75) feet into the zoning district which prohibits uses allowed in the abutting district. The provisions of this section shall benefit only those lots shown on the Tax Maps of the City of Claremont as existing on the date of passage of this amendment [June 11, 1997]. The boundary line of a zoning district may not be extended under any circumstances beyond the boundary of the lot appearing on said tax maps. The city planning department shall keep on record for public use all tax maps referred to in this subsection.

Renumber up to Sec 22-153.

Insert new section after Sec 22-166:

Sec. 22-167. Conditional use permits.

The following uses may be permitted in the rural residential district by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

- (1) Duplexes.
- (2) ADUs, subject to the regulations contained in section 22-513.

Sec. 22-168. Special exceptions.

The following uses may be permitted in the rural residential district by the zoning board of adjustment subject to the regulations contained in section 22-56 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Sawmills provided they are located at least one thousand (1,000) feet from any existing dwelling.
- (2) Gravel processing plants not including rock crushing operations, provided that the processing plants are located at least three hundred (300) feet from any existing residence and two hundred (200) feet from any highway; rock drilling for industrial purposes provided that the drilling operations are located at least seven hundred (700) feet from any existing residence and highway; and rock crushing operations provided that the operations are located at least one thousand five hundred (1,500) feet from any existing residence and highway and further provided:
 - a. That any gravel processing operation or rock crushing operation conform to the provisions contained in section 22-507; and
 - b. That any of the above uses must be located on lots of at least ten (10) acres and such uses shall be subject to such other conditions as the zoning board of adjustment may determine to be essential to provide screening from abutting properties or to prevent excessive noise, dust, vibration or traffic congestion.
- (3) Automobile and machinery junk yards provided that:
 - a. They are located at least two hundred (200) feet from any lot line.
 - b. The area is adequately screened from public view on the front and side yards by natural vegetation or fencing to a minimum height of six (6) feet.
 - c. The operation conforms to any other applicable regulations of the city and the state.
- (4) Hotels, motels, inns, cabins, or other transient lodgings, provided that:
 - a. They are located on a lot of at least four (4) acres plus an additional land area of three thousand (3,000) square feet for each unit.

- b. They have a minimum of four hundred (400) feet of frontage and are located within one thousand (1,000) feet of a state highway.
- c. They are set back a minimum of one hundred (100) feet from any lot line.
- (5) Slaughter houses provided they are located at least one thousand (1,000) feet from any existing dwelling.
- (6) Farms for the raising of four (4) or more pigs, provided that the pigs are fed with grain only and kept at least one thousand (1,000) feet from any dwelling.
- (7) Kennels for the raising of four (4) or more dogs, provided that the dogs are kept at least three hundred (300) feet from any existing dwelling.
- (8) Antique shops, provided there is no outside display of stock-in-trade.
- (9) Planned residential development in accordance with the provisions contained in article VI of this chapter.
- (10) Accessory uses and buildings.
- (11) Home occupations.
- (12) Extraction of sand and gravel.
- (13) Where the boundary line of a zoning district divides a lot in single or joint ownership the regulations for either district may extend to the entire lot, but in no case shall any permitted use be extended more than seventy-five (75) feet into the zoning district which prohibits uses allowed in the abutting district. The provisions of this subsection shall benefit only those lots shown on the Tax Maps of the City of Claremont as existing on the date of passage of this amendment [June 11, 1997]. The boundary line of a zoning district may not be extended under any circumstances beyond the boundary of the lot appearing on said tax maps. The city planning department shall keep on record for public use all tax maps referred to in this subsection.
- (14) Golf courses.

Renumber up to Sec 22-174

Insert new section after Sec 22-186:

Sec. 22-187. Conditional use permits.

The following uses may be permitted in the rural residential district II by the planning board subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state.

- (1) Duplexes.
- (2) ADUs, subject to the regulations contained in section 22-513.

Sec. 22-188. Special exceptions.

The following uses may be permitted in the rural residential district II by the zoning board of adjustment subject to the regulations contained in division 3 of article II of this chapter, as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions and safeguards.

- (1) Hotels, motels, inns, cabins, or other transient lodgings, provided that:
 - a. They are located on a lot of at least four (4) acres plus an additional land area of three thousand (3,000) square feet for each unit.
 - b. They have a minimum of four hundred (400) feet of frontage and are located within one thousand (1,000) feet of a state highway.
 - c. They are set back a minimum of one hundred (100) feet from any lot line.
- (2) Antique shops, provided there is no outside display of stock-in-trade.
- (3) Planned residential development in accordance with the provisions contained in article VI of this chapter.
- (4) Accessory uses and buildings.
- (5) Home occupations.
- (6) Where the boundary line of a zoning district divides a lot in single or joint ownership the regulations for either district may extend to the entire lot, but in no case shall any permitted use be extended more than seventy-five (75) feet into the zoning district which prohibits uses allowed in the abutting district. The provisions of this section shall benefit only those lots shown on the Tax Maps of the City of Claremont as existing on the date of passage of this amendment [June 11, 1997]. The boundary line of a zoning district may not be extended under any circumstances beyond the boundary of the lot appearing on said tax maps. The city planning department shall keep on record for public use all tax maps referred to in this subsection.
- (7) Golf courses.

Renumber up to Sec 22-193.

Sec. 22-206. Permitted uses.

The following uses are permitted in the residential district I. Any uses not expressly permitted are prohibited, except those uses which may be allowed as special exceptions as set forth hereafter.

- (1) Single-family dwellings.

- (2) Parks and playgrounds.
- (3) Public or private nonprofit schools and public libraries.
- (4) Reserved.
- (5) Professional offices in residence, provided that it is located on a lot of at least twenty thousand(20,000) square feet and at least five (5) off-street parking spaces are provided.
- (6) Manufactured housing on individual lots for which a valid nonconforming use, including those granted by variances, existed on June 8, 1988.
- (7) Accessory uses and buildings.

Insert new section after Sec 22-206:

Sec 22-207. Conditional use permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet per dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

Renumber up to Sec 22-213.

Insert new section after Sec 22-226:

Sec 22-227. Conditional use permits.

The following uses may be permitted in the residential district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

Renumber Sec 22-228, 22-229, 22-230 and 22-231.

Sec. 22-296. Permitted uses.

The following uses are permitted in the business district II. Any uses not expressly permitted are prohibited, except those which may be allowed as special exceptions or by conditional use permit as set forth hereafter.

- (1) Any use permitted in the residential district II, other than uses permitted as special exceptions or by conditional use permit, and provided that dwellings are subject to the lot size and area, yard, density and lot coverage requirements contained in sections 22-228 through 22-232.
- (2) Antique and secondhand shops.
- (3) Warehousing and distributing, truck terminals and repair shops.
- (4) Newspaper and printing establishments.
- (5) Radio and television transmitting stations and studios.
- (6) Automotive service stations, sales and repair.
- (7) Establishments from which sales are primarily from delivery trucks, excepting fuel sales.
- (8) Carpenter, cabinet, upholstery, sheet metal, plumbing, heating and sign painting shops.
- (9) Drive-in business where customers are served in their cars.
- (10) Building materials sales and storage and contractor's storage yards.
- (11) Feed and farm equipment sales.

- (12) Bottling plants for soft drinks.
- (13) Manufactured housing on individual lots for which a valid nonconforming use, including those granted by variances, existed on June 8, 1988.
- (14) Accessory uses and buildings.
- (15) Stores for the sale of goods at retail.
- (16) Business, professional, financial and governmental offices.
- (17) Service establishments, including appliance repairs, restaurants, dry cleaning establishments and the like.
- (18) Indoor theaters for dramatic or musical productions or motion pictures.
- (19) Hotels and motels.
- (20) Taverns, private clubs and indoor recreation facilities.
- (21) Public or private nonprofit clubs, lodges and halls.
- (22) Trade schools, professional schools or industrial schools.

Insert new section after Sec 22-297:

Sec. 22-298. Conditional Use Permits.

The following uses may be permitted in the business district II by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and another five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

Renumber through Sec 22-303.

Sec. 22-387. Table of uses.

	City Center Residential I	City Center Residential II	Professional Residential	Mixed Use District	City Center Business II	Additional Regulations Reference (refer to these sections for additional regulations)
Residential	CR-1	CR-2	PR	MU	CB-2	
Single-family dwelling	P	P	P	CU	P	Sec. 22-387.1
Duplex		CUP	CUP	CU	CUP	Sec. 22-387.1
Multifamily dwelling		P	P	CU	P	Sec. 22-387.1
Conversion of existing single-family to duplex	CU	CU	CU	CU	CU	Sec. 22-387.2
Conversion of existing single-family or duplex to multifamily dwelling	CU	CU	CU	CU	CU	Sec. 22-387.2
Accessory dwelling units	CU	CU	CU	CU	CU	Sec. 22-513
Accessory uses and buildings	P	P	P	P	P	
Manufactured housing on individual lots	P	P				Sec. 22-387.4
Planned residential development		SE				Sec. 22-387.5

Sec. 22-513. Accessory dwelling units.

An accessory dwelling unit (ADU):

- (1) Is allowed only by conditional use permit, according to sections 22-100 and 22-101, in any zoning district that allows single-family dwelling units:
 - a. The approved conditional use permit and its conditions of approval shall be recorded in the registry of deeds;
 - b. Only one (1) ADU shall be permitted per single-family dwelling unit.
- (2) Shall be allowed only on properties containing an owner-occupied single-family dwelling:
 - a. Owner must demonstrate on an annual basis that one (1) of the units is the owner's principal place of residence. A temporary absence by the property owner is

- allowed, provided the owner-occupied unit is not rented to or occupied by anyone other than the property owner during such absence;
- b. The owner of a property containing an accessory dwelling may reside in either the principal or the accessory dwelling unit;
 - c. Prior to the issuance of a building permit to construct an ADU or any occupancy of an ADU, the owner shall execute and submit to the planning board for recording at the Sullivan County Registry of Deeds an acknowledgement of the owner occupancy requirement, in a form supplied by or acceptable to the planning board, which shall place all prospective purchasers on notice of the prohibition against renting out both units.
- (3) Shall be subsidiary in size and function to the principal dwelling unit and be consistent with the principal residential structure in appearance, height, design, colors, and materials and maintain aesthetic continuity with the principal dwelling unit as a single-family dwelling:
- a. The ADU shall not occupy more than forty (40) percent of the gross living area of the existing residential structure. While an ADU's floor area may be less than seven hundred fifty (750) square feet, it is not required to be;
 - b. The ADU shall include not more than two (2) bedrooms;
 - c. The ADU may be located within or added to the principal structure, or in a detached structure; provided, however, that any alterations, enlargements, or extensions of the principal structure and/or detached structure may not alter the appearance of the principal structure or the property as a whole in a manner that would look like it was designed to accommodate more than one family;
 - d. A functional interior doorway shall be provided between the ADU and the principal dwelling unit, which may be locked;
 - e. The ADU may use an existing exterior door as an entry, except new ADU entry doors shall not face the street;
 - f. The ADU, including any new construction or physical addition to create an ADU, shall comply with all existing dimensional requirements of this chapter but shall not extend beyond the front wall of the dwelling structure;
 - g. For the residents of the ADU there shall be at least one (1) extra on-site parking space located only in the rear or side yard, and there shall be no additional curb cut.
- (4) Shall be served by well and septic provisions which comply with New Hampshire Department of Environmental Services regulations, if the ADU is not served by public water and sewer.
- (5) An ADU that is within or attached to the principal dwelling unit shall not be considered to be an additional dwelling unit for the purposes of determining minimum lot size or development density of the property and no additional lot area is required for

the addition of a detached ADU. A detached ADU shall meet the following minimum requirements:

- a. New construction must meet setbacks for the zoning district in which the ADU is located;
 - b. Minimum distance between the detached ADU and other structures on the lot shall be as determined by the building code.
- (6) Shall not be allowed in duplex or multi-family dwellings.
 - (7) Shall not be attached to mobile homes or manufactured housing units.
 - (8) Is not allowed in condominium developments.
 - (9) Shall always be under the same ownership as the principal dwelling unit and shall not be converted into condominium or any other form of legal ownership distinct from the ownership of the principal dwelling unit.
 - (10) In the CR-1 and CR-2 districts, maximum lot coverage with a new ADU shall be increased to 40%.

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to suspend council rules, and read the explanation of proposed action.

Roll call:

O’Hearne - no

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - no

Contois - yes
Mooshian - yes
Girard - yes
Motion carried 6-2

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to pass Ordinance 600.

Assistant Mayor Matteau read the explanation of proposed action into the record.

Mayor Girard opened public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:
O’Hearne - yes
Batchelder - yes
Stone - yes
Matteau - yes
Koloski - yes
Contois - yes
Mooshian - yes
Girard - yes
Motion carried 8-0

Ordinance 603 Maximum Residential Density in the R2 District - Second Reading- Public Hearing

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #603

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Maximum density in Residential district II.

Revise a portion of Chapter 22, Zoning Ordinance, to provide for increased density in the Residential district II for multiple units on a single lot, as follows:

If Ord #600 is not adopted, amend Sec. 22-231 to read as follows:

Sec. 22-231. Maximum residential density.

The maximum residential density in the residential district II shall be one (1) dwelling unit per ten thousand (10,000) square feet of the total lot area, and an additional five thousand (5,000) square feet for each additional dwelling unit beyond the first (except for attached ADU units).

If Ord #600 is adopted, insert new section here:

Sec. 22-232. Maximum residential density.

The maximum residential density in the residential district II shall be one (1) dwelling unit per ten thousand (10,000) square feet of the total lot area, and an additional five thousand (5,000) square feet for each additional dwelling unit beyond the first (except for attached ADU units).

Renumber up to Sec 22-233.

Section 2. Maximum density in Residential district I for duplex conversions.

If Ord #600 is adopted, amend Sec. 22-207 to read as follows:

Sec 22-207. Conditional use permits.

The following uses may be permitted in the residential district I by the planning board, subject to the regulations contained in section 22-100 et seq., as well as any other applicable regulations of this chapter or regulations of the state and the following conditions and safeguards.

- (1) Conversion of existing single-family homes to duplexes or multiple-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with section 22-526 et seq., and that such parking does not violate the yard requirements contained in section 22-209.
- (2) ADUs, subject to the regulations contained in section 22-513.

If Ord #600 is not adopted, amend Sec 22-206 to read as follows:

Sec 22-206. Permitted Uses.

The following use are permitted in the residential district I. Any uses not expressly permitted are prohibited, except those uses which may be allowed by special exceptions as set forth hereafter.

- (1) Single-family dwellings.
- (2) Conversion of existing single-family homes to duplexes or multi-family dwellings provided that:
 - a. It involves the conversion of an existing single-family dwelling, and municipal water and sewer are provided.
 - b. The overall density on each lot does not exceed ten thousand (10,000) square feet for the first dwelling unit and five thousand (5,000) square feet per additional dwelling unit.
 - c. The total number of dwelling units does not exceed eight (8) maximum.
 - d. That off-street parking is provided in accordance with Sec 22-526 et seq., and that such parking does not violate the yard requirements contained in Sec 22-209.
- (3) Parks and playgrounds.
- (4) Public or private nonprofit schools and public libraries.
- (5) Reserved.
- (6) Professional offices in residence, provided that it is located on a lot of at least twenty thousand (20,000) square feet and at least five (5) off-street parking spaces are provided.
- (7) Manufactured housing on individual lots for which a valid nonconforming use, including those granted by variances, existed on June 8, 1988.
- (8) Accessory uses and buildings.

Section 3. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 4. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 5. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor O’Hearne and seconded by Councilor Koloski to pass Ordinance 603.

Mayor Girard opened a public hearing.

Walt Stapleton, Ward 3, stated he was in favor of this ordinance, and that there is a critical housing shortage, hoping this will help alleviate shortages.

Mayor Girard closed the public hearing.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Ordinance 604 Foster Homes/Families - Second Reading- Public Hearing

CITY OF CLAREMONT – IN THE YEAR TWO THOUSAND AND TWENTY-TWO

ORDINANCE #604

ZONING ORDINANCE AMENDMENTS

The City of Claremont Ordains:

Pursuant to RSA 675:2 and RSA 674:16, Chapter 22, Zoning, of the Claremont City Code is hereby amended as follows:

Section 1. Foster family homes and foster family group homes.

Revise and renumber portions of Chapter 22, Zoning Ordinance, to regulate and permit foster family homes and foster family group homes in the same manner as other single-family dwellings, rather than as child care uses regulated separately, as follows:

Sec. 22-1. Definitions.

Family shall mean any number of individuals living together as a single residential housekeeping unit occupying a dwelling unit, including foster families living as a family

under RSA 170-E:25, provided that a group of not more than five (5) individuals not necessarily related by blood, marriage, fostering or adoption may be considered a family.

Sec. 22-212. Child care facilities.

The following regulations shall apply to child care facilities in residential district I:

(1) *Permitted uses.*

a. Licensed family daycare home.

(2) *Special exceptions.* The following uses may be permitted by the zoning board of adjustment, subject to the regulations contained in division 3 of article II of this chapter, as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions and safeguards:

a. Family Group Daycare Home

(3) Such use shall comply with the lot size and area requirements contained in sections 22-208 through 22-211.

Sec. 22-232. Child care facilities.

The following shall apply to child care facilities in residential districts II:

(1) *Permitted uses:*

a. Family daycare home;

b. Family group daycare home.

(2) *Special exceptions.* The following uses may be permitted by the zoning board of adjustment, subject to the regulations contained in division 3 of article II of this chapter, as well as any other applicable regulations of this chapter or regulations of the state, and the following conditions and safeguards:

a. Reserved.

b. Reserved.

(3) Such use shall comply with the lot size and area requirements contained in sections 22-228 through 22-231.

Sec. 22-387. Table of uses.

Commercial		CR-1	CR-2	PR	MU	CB-2	
	Art galleries and arts and crafts shops			P	P	P	Sec. 22-387.6
	Automotive service stations, sales and repair					P	
	Bed and breakfast		P	P	CU		Sec. 22-387.7
	Building supply stores					P	

	Child care facilities						Sec. 22-387.8
	Family daycare home	P	P	P	P	SE	
	Family group daycare home	SE	SE	SE	SE	SE	
	Group child care center			SE	SE	SE	

Sec. 22-536. Child care facilities.

Off-street parking spaces shall be provided for child caring facilities as follows:

- (1) Family daycare home, two (2) spaces.
- (2) Family group daycare home, two (2) spaces plus one (1) additional space for each four (4) additional children for which such family group daycare home is licensed, for a total of four (4).
- (3) Group child care centers, two (2) spaces plus one (1) additional space for each four (4) additional children for which such group child care centers are licensed, for a total of four (4).
- (4) Group home, two (2) spaces plus one (1) additional space for each four (4) additional children for which such group home is licensed, for a total of four (4).

Section 2. Prior Enactments Shall Not Be Superseded

Any adoptions and/or amendments to Chapter 22 of the City Code by action of the City Council, prior to adoption of this Ordinance, are hereby preserved subject to the current amendments as presented by this Ordinance.

Section 3. Validity

If any article, section, subsection, sentence, clause or phrase of this Ordinance is for any reason held to be unconstitutional or invalid, such decision shall not affect the remaining portions of this Ordinance.

Section 4. Effective Date

This Ordinance shall take effect and be enforced immediately upon passage.

A motion was made by Councilor Koloski and seconded by Councilor Mooshian to suspend council rules and read explanation of proposed action instead.

A motion was made by Councilor Koloski and seconded by Assistant Mayor Matteau to pass Ordinance 604.

Councilor Koloski read the explanation of proposed action into record.

Mayor Girard opened public hearing.

Norm Blouin, Ward 1, asked who is going to pay for housing for foster families.

Assistant Mayor Matteau clarified this Ordinance is just the changing of the definition for foster families. Essentially, if someone has foster children in a single family home they do not have to get a different kind of permit, and is treated like every other family, and is not advocating for building more housing specifically for foster families.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

NEW BUSINESS

CDBG Status Reports - Public Hearing

Public Handout

CITY OF CLAREMONT
Public Hearings
Community Development Block Grant Projects

Wednesday, December 14, 2022, 6:30pm

Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority (NH CDFA). Up to \$500,000 annually is available on a competitive basis for public facility projects, up to \$500,000 for housing projects, up to \$500,000 for economic development projects, and up to \$500,000 annually is available for emergency activities. Up to \$25,000 is available per planning study. All projects must primarily benefit low and moderate income persons.

Public Hearing on the Progress of the Claremont Creative Center/56 Opera House Square Improvements Project

The Claremont Development Authority (CDA), in partnership with the West Claremont Center for Music and the Arts (WCCMA), is revitalizing the long-empty 56 Opera House Square in the heart of historic Claremont, NH to create THE CLAREMONT CREATIVE CENTER. The original project scope was to renovate the entire building for use by the WCCMA. Due to a sudden spike in construction costs, the project partners modified the scope to phased construction. Phase 1 is shovel-ready: renovation and activation of the first floor of 56 Opera House Square is slated for completion Summer 2023. This community space will include a gathering / performance space, office space, and a flexible education room. WCCMA looks forward to utilizing the space to bring people together through the arts, which will contribute to economic growth and invigorate civic pride. Improvements include asbestos remediation, shared elevator and building clean out.

Public Hearing on Requesting an Additional \$400,000 in GAP Funding for the Claremont Creative Center/56 Opera House Square Improvements Project

NH CDFA has made available a GAP financing pool set aside of \$2,000,000 for projects financially impacted by increased costs caused by Covid-19. This is a request to NH Community Development Finance Authority for an additional \$400,000 in CDBG GAP funding for the Claremont Creative Center/56 Opera House Square improvements project in Claremont. Due to Covid, construction costs have increased significantly.

Mayor Girard noted there is material for the Public Hearings Community Development Block Grant Projects in the hallway of City Hall if anyone wants to review the information.

Mayor Girard read from the script sent from CDBG

Andy Lafreniere, Vice Chair for the CDA, gave a presentation on renovation updates at 56 Opera House Square. The elevator is in, and the asbestos has been remediated, architectural engineering is completed for phase one and total building. The project has been put out to bid. Mr. Lafreniere noted the funding gap in phase one for the construction.

Melissa Richmond, added the tax credit funds, 23 businesses and organizations that have contributed towards the project thus far, and that is not counting any private funders.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

CDBG Grant Applications – Public Hearing

Motion to Authorize CDBG Application for Claremont Creative Center

The Claremont City Council hereby approves the submission of Community Development Block Grant GAP funding for the Claremont Development Authority/West Claremont Center for Music & the Arts renovation project at 56 Opera House Square in an amount not to exceed \$400,000 (consistent with public hearing notice) and to further authorize the City Manager to sign and submit the application, and upon approval of the application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

A motion was made by Assistant Mayor Matteau and seconded by Councilor Koloski to authorize the City Manager to sign and submit the application, and upon approval of the application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Mayor Girard Opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Opioid Litigation Funds Settlement Initiative Presentation with TLC

Sue Carr stated the Opioid Litigation Settlement funds have been received and would be used for making an effort to enhance programs they have. Sue Carr introduced Dan Wargo, Program Manager for TLC Recovery in Claremont.

Mr. Wargo shared a presentation for programs that could help build a stronger sense of community, a stronger sense of direction, and a new group for recovery plans of action, Dan Wargo created.

Councilor Contois asked if there was a twenty-four-hour hotline, Mr. Wargo explained there wasn’t and those that need assistance can dial 211 for after hours.

ARPA DISCUSSION

City Manager Manale read an ARPA allocation memo to the Council.

Memorandum

To: Mayor, Assistant Mayor, and Council
From: Yoshi Manale, City Manager
Date: 12/14/2022
Re: ARPA Allocation Memo

Mayor, Assistant Mayor, and Council,

In March of 2022, the City accepted the second payment of the Coronavirus State & Local Fiscal Recovery Funds known as the American Recovery Protection Act “ARPA” funds for a total amount of \$1,348,000. To make it easier for municipalities to expend those funds, the US Department of Treasury issued rules that allowed Claremont to consider the total reward as revenue loss, “the standard allowance,” instead of completing a total loss calculation. This allows the city to utilize the funds with broader authority for general government services, with streamlined reporting requirements.

Government Services include but are not limited to:

- Road building and maintenance and other infrastructure
- Health Services
- General government administration, staff, and administrative facilities (which includes all government administrative spending on economic development, planning, assistance to small businesses, grant management, worker retention incentives, etc.)
- Environmental remediation
- Provisions of police, fire, and other public safety services

Restrictions on the use of the standard allowance are the following:

- Offset a reduction in net tax revenue (cannot cut taxes with the money)
- Deposit to a pension fund
- No debt service payment or replenishing reserve fund
- No satisfaction of settlements and judgments
- Nor can be used to violate or conflict with any purpose of ARPA, including using the funds to undermine Covid-19 mitigation practices, procurement/contracting law, environmental standards, and civil rights

To determine the best utilization of our ARPA funding, I reviewed past council directives, community input, the city's 2017 strategic plan, director feedback, and the most recent 2023 Capital Improvement Plan. Based on those inputs and looking at what projects would most

enhance the improvement of the city and its infrastructure; I am suggesting the following items and allocated amounts:

ARPA Funding Options		
<u>Revolving Loan Fund for Downtown Small Business Micro-Loans</u>	<i>\$200,000.00</i>	Working with the CDA and their existing business loan program, provide micro-loans to new and current business owners in the downtown TIF district to expand and open up new businesses downtown. The goal is to provide funds that might otherwise be difficult to obtain with traditional loan programs. Especially with interest rates increasing, allowing our ARPA funds to offer competitive interest rates for borrowing will hopefully encourage business owners to expand or open new businesses in our downtown area.
<u>City Hall/Opera House Improvements</u>		
Roof (Completed)	<i>\$220,000.00</i>	
Building Management System	<i>\$17,000.00</i>	New "front end" software and components to monitor and adjust the temperature setpoints and reset any nuisance safety trips for the city hall HVAC units. Will significantly reduce time, labor, and future service calls
Front/Side Step Improvements	<i>\$17,000.00</i>	Improve railing and accessibility at front and side step entrances
Opera House HVAC and Ventilation	<i>\$321,000.00</i>	Engineering and installation of a modern ventilation system to replace the current aging mini-split system. Will look for manufacturing and state/federal reimbursements for increased HVAC efficiency
Atrium Carpeting	<i>\$20,000.00</i>	Replace carpeting in the atrium and at the door entrances
Opera House Railing	<i>\$5,000.00</i>	Increase patron safety and meet current building code for railing height
Council Chambers improvements	<i>\$24,000.00</i>	Camera, sound, and furniture upgrades
Accessibility Access	<i>\$100,000.00</i>	Exterior ramp ADA complaint issues
<u>Parks and Recreation</u>		

Tennis Courts Redesign and Build /Pickleball Court	\$300,000.00	Monadnock Park tennis court replacement and reconstruction; 3 tennis courts and four pickleball courts
Dog Park	\$64,000.00	Dog park design and placement
Splash Park Design	\$10,000.00	Design plan for a future splash park (estimated future cost of \$250,000)
DPW		
Sidewalk Program	\$50,000.00	Sidewalk Replacement
Total	\$1,348,000.00	

Resolution 2023-17 Transfer non-capital funds for traffic signals

Chief Burr, explained resolution 2023-17.

RESOLUTION 2023-17

Non-Capital Reserve Transfer to 01-422-290-0000 for Traffic Light Signals

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that

WHEREAS, in July 2018, the City established a Non-capital Reserve Fund for Traffic Signals within the City of Claremont; and

WHEREAS, the City needs to maintain and upgrade traffic signals for the safety of its citizens and the traveling public and doing so will take significant resources; and

NOW, THEREFORE, BE IT RESOLVED by the Council of the City of Claremont, New Hampshire, to raise and appropriate the sum of up to \$13,000 to be taken from the Non-capital Reserve Fund for Traffic Signals to the Fire Department line item 01-422-290-0000 with no impact on the tax rate, to continue to repair traffic signals through the duration of FY2023; and

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be necessary to implement this resolution. *(2/3 Vote Required)*

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to adopt Resolution 2023-17.

Councilor O'Hearne read Resolution 2023-17 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O'Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Resolution 2023-18 Highway Safety Grant

Chief Wilmot, explained the NH Highway Safety Grant, and stated this grant that has been received for the past several years.

RESOLUTION 2023-18

New Hampshire Highway Safety Grant

BE IT RESOLVED by the Claremont City Council, after a public hearing duly noticed, that:

WHEREAS the City of Claremont, New Hampshire has applied for and been awarded a New Hampshire Highway Safety Grant in the amount of \$31,025.

NOW THEREFORE BE IT RESOLVED that the City Council hereby authorizes the City Manager or his designees to undertake all actions and execute all documents as may be required to accept New Hampshire Highway Safety Grant in the amount of \$31,025.00 from the New Hampshire Highway Safety Agency for the Claremont Police Department; and

BE IT FURTHER RESOLVED to accept and expend the sum of \$31,025.00 for the Police Department towards speed enforcement, DUI enforcement, distracted driving enforcement, high visibility mobilizations, speed enforcement equipment (75% reimbursement) with an in-kind match at no impact on the tax rate.

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution.
(2/3 Vote Required)

Dated this 14th day of December, 2022, the City of Claremont, County of Sullivan, State of New Hampshire.

A motion was made by Councilor Contois and seconded by Councilor Stone to adopt Resolution 2023-18.

Councilor Contois read Resolution 2023-18 into record.

Mayor Girard opened a public hearing, no one spoke. Mayor Girard closed the public hearing.

Roll call:

O’Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

COMMITTEE REPORTS

Councilor Stone stated the next Policy Committee meeting will be held in January.

Assistant Mayor Matteau noted Planning and Zoning reviewed parking requirements, and the Ad Hoc Committee will be putting together a Council Packet for review.

Councilor Contois noted the Conservation commission is moving forward with an RFP for numbers for the Conservation plan, Natural Resource Inventory.

Certificates of appropriateness on the tax shop, their roof was re-done, and the First Baptist Church put in new heat pumps and under the conditions they will be painting their pipes brown to match the building. Fencing was approved at 169 Main Street.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Koloski pointed out that the City Website has issues, the Fire Department page is old, and the Police Department page is broken, along with Current Events page being down..

Mr. Manale shared he, and the Director of Planning and Development have discussed a social media presence, and is looking to utilize funds from within the TIFD.

CONSULTATION WITH LEGAL COUNSEL

None

Mayor Girard shared Charlie Fletcher a long-time member of the Fire Department has passed away and asked for a moment of silence

ADJOURNMENT

At 8:25 p.m., a motion was made by Assistant Mayor Matteau and seconded by Councilor Batchelder to adjourn.

Voice vote:

O'Hearne - yes

Batchelder - yes

Stone - yes

Matteau - yes

Koloski - yes

Contois - yes

Mooshian - yes

Girard - yes

Motion carried 8-0

Respectfully Submitted,

Julia A. Bizzarro
Clerk to the Council